MUTUAL NON-DISCLOSURE AGREEMENT

SAMPLE LEGAL DOCUMENT

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into and made effective as of October 8, 2026 (the "Effective Date"), by and between **Party A Corporation**, with its principal place of business at 123 Corporate Way, Suite 100, Tech City, CA 94016, and **Party B Industries**, with its principal place of business at 456 Enterprise Drive, Innovation District, NY 10001. Party A and Party B may collectively be referred to as the "Parties" or individually as a "Party."

WHEREAS, the Parties desire to evaluate a potential business relationship or transaction of mutual interest (the "Purpose"); and

WHEREAS, in connection with the Purpose, either Party may disclose to the other Party certain proprietary, technical, financial, or business information that is confidential in nature;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Definition of Confidential Information.

"Confidential Information" refers to any proprietary information, technical data, trade secrets, or know-how disclosed by one Party ("Disclosing Party") to the other Party ("Receiving Party"), whether orally, in writing, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

2. Obligations of Receiving Party.

The Receiving Party agrees to maintain the strict confidentiality of the Confidential Information and shall:

- Use the Confidential Information solely for the expressed execution of the business Purpose.
- Restrict access to Confidential Information to its employees, directors, or advisors who have a verifiable "need to know" and who are bound by confidentiality obligations at least as restrictive as those herein.
- Exercise at least the same degree of care to protect the Confidential Information as it uses to protect its own confidential information of a similar nature, but in no event less than a reasonable standard of care.

3. Exclusions from Confidential Information.

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement by the Receiving Party; (b) was already in the lawful possession of the Receiving Party prior to disclosure; (c) is rightfully received from a third party without restriction; or (d) is independently developed by the Receiving Party without reference to or reliance upon the Disclosing Party's Confidential Information.

4. Term and Termination.

This Agreement shall govern all disclosures made between the Parties from the Effective Date. The obligations of confidentiality shall survive for a period of three (3) years from the date of disclosure, or until such time as the Disclosing Party releases the Receiving Party in writing.

IN WITNESS WHEREOF, the Parties hereto have executed this Mutual Non-Disclosure Agreement as of the Effective Date.

PARTY A CORPORATION:	**PARTY B INDUSTRIES:**
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____